SCHOOL OF LAW
Faculty of Arts

MACQUARIE University

Topic 6: Immunities

LAWS2000/8015 International Law

The Julian Assange case

Julian Assange, the founder of WikiLeaks, has been a central figure in debates over press freedom and government transparency. In June 2024, after a prolonged legal battle, Assange reached a plea deal with U.S. prosecutors, pleading guilty to one count of violating the Espionage Act. This agreement led to his release and return to Australia.

A significant chapter in Assange's story began in June 2012, when he sought refuge in the Ecuadorian Embassy in London to avoid extradition to Sweden over allegations of sexual assault. Fearing extradition to Sweden, Assange was granted asylum by Ecuador in August 2012. Assange stayed for nearly seven years within the premises of the Ecuadorian embassy.

Watch this BBC news video (from 2021) for some background on the case of Julian Assange.

Note: The 1951 *Convention Relating to the Status of Refugees* is irrelevant to answering the following questions.

1. ***Discuss the jurisdictional issues involved in Julian Assange's case (refer also to the contents of the Topic 5 lecture).***

2. ***Was Ecuador permitted, under international law, to grant asylum to WikiLeaks founder Julian Assange two months after he took refuge in its London embassy in 2012, while fighting extradition from the UK?***

3. ***Under international law, can the UK enter the Ecuadorian embassy to arrest Julian Assange, who had taken refuge there in order to avoid his extradition to Sweden?***

4. ***If Ecuador grants Ecuadorian citizenship to Julian Assange, can it subsequently ask the UK to recognise him as a diplomatic agent? What would be a reason for doing so?***

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